BEFORE THE NEW YORK STATE

PUBLIC SERVICE COMMISSION

Case 23-G-0225: Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

Case 23-G-0226: Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

REBUTTAL TESTIMONY OF SANE ENERGY PROJECT

September 22, 2023

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I. INTRODUCTION AND OBJECTIVE

Q. Please state your name and occupation

A: Kim Fraczek, Director, Sane Energy Project

Q. Did you submit direct testimony in this proceeding?

A. Yes, on September 1, 2023

Q: **What Testimonies are you rebutting in this Testimony?**

A:

1. Staff Pipeline Safety Panel
2. Staff Gas Reliability & Supply Panel
3. Staff Policy Panel

Q. What is the objective of your rebuttal testimony?

A: The objective of this rebuttal is to address the testimony presented by the Staff Pipeline Safety Panel of the Department of Public Service and the concerns that it raises about the alignment of our state's actions with climate laws and commitments.

I will address Staff's attendance to National Grid's request for over $2Billion in Leak Prone Pipe replacement in the Pipeline Safety Panel. I will also address Staff's lenient recommendations to the Greenpoint Energy Center Infrastructure.

This rebuttal is particularly timely as it coincides with the final day of Climate Week 2023, aimed at galvanizing action towards a sustainable future[1].

[1] SANE-REBUTTAL-EXHIBIT-1-Secretary-General_s Closing Remarks at ...mit _ United Nations Secretary-General

Q: What is your purpose in submitting this rebuttal testimony?

A: My purpose in submitting this rebuttal testimony is to appeal to our state government and regulators to be conscientious objectors to National Grid's proposal, and adhere to the global echo to stop investment in fossil fuels. As stated in the closing remarks of the United Nation Climate Ambition Summit just two days ago, be the "first-doers and first-movers to align our strategies and portfolios with a 1.5 degrees strategy". Given this nation built out about 1.5million miles of the 3 million miles of gas pipelines in a decade in the mid-20th century[2], we can certainly do anything we put our minds to including retiring this aged-system instead of replacing it invest in Thermal Energy Networks and Energy Efficiency as stated in our Initial Testimony.

II. REBUTTAL OF STAFF'S RECOMMEND ADJUSTMENTS FOR KEDNY'S GREENPOINT INFRASTRUCTURE PROGRAM, AS WELL AS THE GREENPOINT MASTER PLAN EXECUTION PROJECT.

Q: Do you agree with Staff assessments of the importance for further investments in LNG facilities?

A: No. On Page 21 in the Testimony of Staff Gas Reliability & Supply Panel, they state that "The Panel supports the Companies' proposed capital programs associated with the LNG facilities due to the very significant amount of peak day supply that each LNG facility provides for their respective service areas and the fact that other supply sources cannot be used as a substitute for the LNG facilities due to ongoing capacity constraints in each Company's service

[2] SANE-REBUTTAL-EXHIBIT-2-Natural gas pipelines - U.S. Energy Information Administration (EIA)

area." I would like to bring the attention to National Grid's response to SANE-01 Interrogatory[3] where National Grid reveals in the past three years, it has used 0.53%, 1.97%, and 16.81% of their LNG respectively. This is not very significant, and I recommend Staff approves more funding to Remediation and Weatherization like the Weatherization Health & Safety Pilot Program that is sadly objected to on Page 50 of the Testimony of Staff Policy Panel. Please assist our communities in shutting down National Grid's heinous fossil fuel facility at 287 Maspeth, and allow the land and water to heal and remediate.

Q: Do you agree with the Staff recommendations to decrease spending on Greenpoint Energy Center?

A: No, I implore Staff to adopt an even more assertive approach in slashing funding to Greenpoint facilities. In the face of National Grid's audacious request for a $447 million investment in this facility, which stands as the single largest spending request for KEDNY, making only minor cuts to the total request falls far short of advancing our commitment to phasing out fossil fuels, a critical imperative mandated by our laws.

III. REBUTTAL OF STAFF'S RECOMMENDATION FOR HIGHER LPP TARGETS THAN THE TARGETS PROPOSED BY THE COMPANIES

Q: Do you agree with the Staff recommendations and definitions for Leak Prone Pipe (LPP) removal?

A: No. I urge Staff to adopt a stringent stance against replacing LPP with other pipelines that will leak in the future. On Page 30 of the Prepared Testimony of the Staff Pipeline Safety Panel, Staff

[3] SANE-REBUTTAL-EXHIBIT-3-SANE-01-RESPONSE

remarks that “Removal of LPP results in increases in safety and reduced methane emission. Therefore, we consider that removal of LPP from the system should be accelerated beyond the Companies’ proposal.” only further enables National Grid to bail out the basement while there are holes in the roof. Replacing one known quantity to leak with the same known quantity expecting a different result is incorrigible hubris from both Parties.

Q: What do you recommend?

A: I strongly recommend that we seize this pivotal moment in time to transcend the isolated proceedings of the DPS and, in the words of Secretary-General to the United Nations António Guterres, become 'first-doers and first-movers' to alter the course of New York State's future. Staff and Commissioners wield significant influence in our state, and it is imperative that we push the boundaries and redirect our current trajectory. Complacency is not an option. This is the precise moment to take action, especially when a multi-billion-dollar multinational corporation is seeking to increase charges, all while jeopardizing our well-being and exacerbating climate vulnerabilities.

Q: Does this complete your Rebuttal Testimony.

A: Yes, and although I lack the extensive legal resources at my disposal, unlike entities such as National Grid or the state of New York, I nonetheless, wish to underscore that the points I have raised are of paramount significance. I earnestly implore all Parties involved to give careful consideration to these points and integrate them into our deliberations.